

Habermas' Theory of Discourse Ethics

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1 Introduction

The purpose of this essay is to reveal the central distinctive elements of Jürgen Habermas' theory of discourse ethics and how his moral theory differs from those of two other prominent philosophers, Immanuel Kant and John Rawls. In unveiling the distinctive qualities of Habermas' discourse ethics, the fundamental difference between it and Kant's moral theory, upon which Habermas in part bases his thought, will be explained. Next, in exposing another distinctive element of discourse ethics, a pivotal difference between Habermas' moral theory and John Rawls' theory of justice will be elucidated.

Jürgen Habermas' theory of discourse ethics contains two distinctive characteristics: (I) it puts forth as its fundamental tenet a prerequisite of participation in argumentation for testing the validity of a norm and (ii) it transforms the individual nature of Kant's categorical imperative into a collective imperative by reformulating it to ensure the expression of a general will and by elevating it to a rule of argumentation. The proceduralism of the first characteristic sets Habermas' discourse ethics apart from the moral theory of John Rawls. The second characteristic differentiates it from Kantian moral theory and, again, from Rawls' theory of justice.

Habermas' moral theory is grounded in the principle of discourse ethics, which can be viewed as a principle of argumentation. It stipulates that "only those norms can claim to be valid that meet (or could meet) with the approval of all affected in their capacity as participants in a practical discourse."¹

This practical discourse, Habermas writes, is "a procedure for testing the validity of hypothetical norms, not for producing justified norms."² In this way Habermas' discourse ethics guarantees that the process of making judgements is carried out impartially, in contrast to Rawls' theory of justice, which seeks to make impartial the orientation of an individual making a moral judgement. Unlike Rawls' (and Kant's) theory, Habermas' principle of discourse ethics ensures that the universalist principle can be interpreted only as expressing the normative content of a procedure, not the normative content of the argument. Indeed, Habermas makes it clear that his theory contains no hint of substantive moral content.

2 The Universalization Principle

As the practical discourse on a norm unfolds, Habermas' universalization principle, adapted from Kant's categorical imperative, guides the argumentation of the participants while guarding its rationality. But Habermas' universalization principle, though borrowed from Kant's moral theory, differs from the categorical imperative in that it extends Kant's tenet to explicitly include as participants all those affected by a norm.

Habermas' formulation of the universalization principle, which is "intended to compel the universal exchange of roles,"³ precludes its monological application. Kant's categorical imperative, on the other hand, requires only a monological application by the individual pondering the norm. Articulating his ethical system in *Metaphysic of Morals*, published in 1785, Kant described his categorical imperative as follows: "Act only according to a maxim by which you can at the same time will that it shall become a general law." Kant's categorical imperative permits an individual to ascribe as valid for everyone any maxim that he would will to be a universal law.

Habermas' theory modifies Kant's categorical imperative to explicitly include all those involved in or affected by a conflict. Habermas' principle of universalization holds that "for a norm to be valid, the consequences and side effects of its general observance for the satisfaction of each person's particular interests must be acceptable to all."⁴

Habermas' principle reformulates the categorical imperative to necessitate that a maxim must be submitted to everyone to test its claim to universality. "The emphasis shifts from what each can will without contradiction to be a general law, to what all can will in agreement to be a universal norm."⁵ In this way Habermas transforms Kant's categorical imperative from a maxim pertaining to the individual into one governing all participants involved in the testing of norm. As such, the universalization principle transcends its former role as an imperative to become, in Habermas' words, a "procedure for argumentation."

It also, according to Habermas, attempts to draw the perspective of real-life argumentation into the deliberation of a norm by admitting all affected as participants. As such, Habermas' principle of universalization differs, as Habermas himself points out, from the principle Rawls proposes to ensure that an individual considers impartially the interests of others in formulating a norm. Rawls places the individual into an "original position" in which "differences of power are eliminated, equal freedoms for all are guaranteed, and the individual is left in a condition of ignorance with regard to the position he might occupy in a future social order."⁶ Habermas' objection to Rawls' formulation of a universalization principle is the same as his objection of Kant's categorical imperative: It allows the individual to justify norms monologically, that is, without resorting to participatory dialogue with the others who may be affected by the norm.

3 Conclusion

Thus, as has been shown, Habermas' theory of discourse ethics contains two central distinctive elements – the insistence on practical, participatory discourse and a principle of universalization that guides argumentation. Through these two elements, discourse ethics differs from the moral theories of Rawls and Kant, even though Habermas borrows extensively from the latter in formulating his theory. Indeed, Habermas retains the strengths of Kant's moral theory while discarding its weaknesses, forging a theory that rises above the traditional criticisms leveled at Kant, such as his theory's monological nature, while remaining grounded in a practical, pragmatic purpose – using communication to devise common solutions to normative problems.

4 Notes

1 Jürgen Habermas, *Moral Consciousness and Communicative Action*, translated by Christian Lenhardt and Shierry Weber Nicholsen. Cambridge, Massachusetts: The MIT Press, 1990, p. 197.

2 *ibid.* p. 122.

3 *ibid.* p. 65.

4 *ibid.* p. 197.

5 *ibid.* p. 67.

6 *ibid.* p. 66.